

Court No. - 21

Case :- WRIT - C No. - 6065 of 2023

Petitioner :- Amar Nath Singh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- R.K. Mishra, Bindu Kumari

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Sri Sushil Kumar Pandey, learned counsel for the respondent Electricity Department prays for and is granted a weeks' time to obtain instructions.

List as fresh on 01.03.2023.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 21.2.2023

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The instant petition has been filed praying for quashing of the order dated 5.12.2022 passed by respondent no.5 and the recovery proceedings pursuant to recovery citation dated 9.5.2022 issued by respondent no.3 and for a further direction to respondent no.5 to take decision on the representation of the petitioner dated 17.12.2022.

It appears that in Writ-C No.25178 of 2022 filed by the petitioner on the same subject matter, this Court by order dated 22.9.2022 gave liberty to the petitioner to avail the remedy provided under Clause 6.5 of the Electricity Supply Code, 2005 with a further direction to the respondent-Electricity Department to take an expeditious decision on the same. In pursuance thereof, the respondents have taken decision on 5.12.2022 and therein, they have left open to the petitioner to file evidence and apply for reduction or increase of load and in which event, appropriate decision will be taken on the same. In terms thereof, the petitioner is stated to have filed a representation dated 17.12.2022 before the respondents and prays that the said representation be directed to be decided.

Learned counsel appearing on behalf of the respondent-Electricity Department Sri S.K. Pandey states that the respondents will take decision on the representation dated 17.12.2022 within such time as may be directed by this Court.

Accordingly, without expressing any opinion on merits, the instant petition is disposed of with direction to respondent no.5 to take appropriate decision on the representation of the petitioner dated 17.12.2022 within a period of four weeks by passing a speaking order and until the representation is decided, not to take any coercive measure for recovery of the amount.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.3.2023

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